

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-007
Amendments to Title 6 of the Chickasaw Nation Code
(Domestic Relations and Families)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for Domestic Relations and Families, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Chapters 2, 4 and 5 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 6-201.5

JURISDICTION FOR DEPRIVED CHILD PROCEEDINGS
ORIGINATING IN THE CHICKASAW NATION DISTRICT
COURT.

A. For purposes of this Deprived Children's Code, the "territorial boundaries of the Chickasaw Nation" shall **mean** ~~include~~ the land described in the Chickasaw Constitution and Chickasaw Code Title 5 Section 5-201.3.

B. The Court shall have exclusive jurisdiction over any Chickasaw Indian Child who is ~~residing or domiciled~~ **or located in** Indian Country within the territorial boundaries of the Chickasaw Nation.

C. The Court shall have exclusive jurisdiction over any Indian Child, regardless of tribal affiliation, who is ~~found~~ **domiciled or located** in Indian Country within the territorial boundaries of the Chickasaw Nation.

D. The Court shall have concurrent jurisdiction over any Chickasaw Indian Child who is ~~residing or domiciled~~ **outside of** ~~within the territorial boundaries of the Chickasaw Nation~~ **Indian Country.**

E. **The Chickasaw Nation is duly authorized to enter into agreements with other tribal nations or states with respect to the care and custody of Indian children and jurisdiction over child custody proceedings, including, but not limited to, agreements which may provide for orderly transfer of jurisdiction on a case-by-case basis and agreements which provide for concurrent jurisdiction between the tribal nations and states.** ~~The Court shall have concurrent jurisdiction over any Indian Child who is residing or domiciled within the territorial boundaries of the Chickasaw Nation.~~

SECTION 6-201.6**RESERVED WRITTEN CONSENT TO JURISDICTION.**

~~The Court shall have jurisdiction over all issues within this Deprived Children's Code wherein a Parent, Guardian, or Traditional Custodian who is not an American Indian or Alaska Native as defined by 25 U.S.C. Section 450B(e) has consented in writing to the jurisdiction of the Court.~~

SECTION 6-201.7**CHILD WELFARE TRANSFERS OF DEPRIVED CHILD PROCEEDINGS FROM ANOTHER COURT.**

A. **The Court may accept from a** ~~Any state court may transfer to the Court herein any proceeding for the Foster Care placement of, or Termination of Parental Rights to, any Indian Child who is a citizen of, or eligible for citizenship in the Chickasaw Nation, if the Court finds that the transfer would not be detrimental to the best interests of the Child. These provisions shall also apply to transfers from other tribal courts where an Indian Child is a citizen of or eligible for citizenship in the Chickasaw Nation.~~

B. In determining whether to transfer to the ~~Chickasaw Nation's jurisdiction,~~ the Court may consider:

1. whether the Child or the Child's family will be in need of special services for physical or mental disease or defect which the **Chickasaw** Nation and its resources are unable to adequately provide;
2. whether the Child has been adjudicated a Deprived Child. The Court should decline to accept the transfer until after the Adjudication Hearing is complete;
3. whether the Deprived Children are Chickasaw;
4. any other matters which may adversely affect the Chickasaw Nation's ability to provide treatment or necessary services to the Child's family; and
5. the length of time the proceeding has been ongoing prior to requesting transfer.

C. A court transferring a case to the **Chickasaw Nation District Court** ~~Chickasaw Nation's jurisdiction~~ under Subsection A of this Section shall transmit all documents and legal and social records, or certified copies thereof, to the Court, which shall proceed with the case as if the petition has been originally filed or the adjudication had been originally made in this Court. Transfer cases shall be assigned a court case number as in other cases.

SECTION 6-201.8**CHILD WELFARE TRANSFERS OF DEPRIVED CHILD
PROCEEDINGS TO TRIBAL OR STATE COURT.**

A. The Court is authorized to transfer **to another tribal or state court** any Deprived Child's case arising within the Chickasaw Nation's jurisdiction, ~~said Child not being a citizen or eligible for citizenship in the Chickasaw Nation, to the Court of the Child's Indian tribe, or if the Child is a non-Indian, to the courts of the state where the Child is a resident or domiciled,~~ upon the petition of the Prosecutor, either Parent, a Guardian, a Traditional Custodian, the Child's tribe, or an appropriate official of the Child's state.

B. In making such transfers the Court must consider:

1. the best interests of the Child;
2. any special needs or mental or physical disease or defects of the Child and family and the ability of the receiving jurisdiction to meet those needs;
3. if transfer is requested prior to adjudication, whether witnesses necessary to the adjudication can attend in the receiving jurisdiction;
4. emotional, cultural, and social ties of the Child and its family; and
5. the likelihood that the same Child and family would return to the Chickasaw Nation jurisdiction within a reasonable time and come before the Court again.

C. Upon entering an order transferring a case as provided in this Section, the Court shall serve a certified copy of the Order of Transfer, and a copy of the court file concerning the Deprived Child's case to the Court Clerk of the receiving jurisdiction by certified mail, return receipt requested. The Court may retain physical Custody of the Child pending an order or notice of acceptance from the receiving jurisdiction, and upon receiving such order on notice, may close the case file and dismiss the case subject to any necessary order for the protection of the Child until completion of physical transfer to the receiving jurisdiction.

SECTION 6-401.3**JURISDICTION OVER ADOPTIONS.**

A. For purposes of this Chapter, the "territorial boundaries of the Chickasaw Nation" shall **mean** include the land described in the Chickasaw Constitution and Title 5 of the Chickasaw Nation Code.

B. The Court shall have exclusive jurisdiction over any **Indian** ~~Chickasaw~~ Child who resides or is domiciled **or located** in Indian Country within the territorial boundaries of the Chickasaw Nation.

C. ~~The Court shall have concurrent jurisdiction over any Chickasaw Child who resides or is domiciled within the territorial boundaries of the Chickasaw Nation.~~

C. D. The Court shall have concurrent jurisdiction over any Chickasaw Child who resides or is domiciled outside the territorial boundaries of the Chickasaw Nation **Indian Country**.

~~E. The Court shall have concurrent jurisdiction over any Indian Child who resides or is domiciled within the territorial boundaries of the Chickasaw Nation.~~

D.F. The Court shall have **exclusive** concurrent jurisdiction over any Indian Child who is currently in the custody of the Chickasaw Nation, regardless of the **Indian** Child's physical placement.

E. The Chickasaw Nation is duly authorized to enter into agreements with other tribal nations or states with respect to the care and custody of Indian children and jurisdiction over child custody proceedings, including, but not limited to, agreements which may provide for orderly transfer of jurisdiction on a case-by-case basis and agreement which provide for concurrent jurisdiction between the tribal nations and states.

SECTION 6-501.3

JURISDICTION.

A. ~~Territorial jurisdiction,~~ **Subject** subject matter jurisdiction and personal jurisdiction shall be in accordance with Title 5, Chapter 2, Article A of the Chickasaw Nation Code.

B. The "territorial boundaries of the Chickasaw Nation" shall mean the land described in the Chickasaw Constitution and Chickasaw Code Title 5 Section 5-201.3.

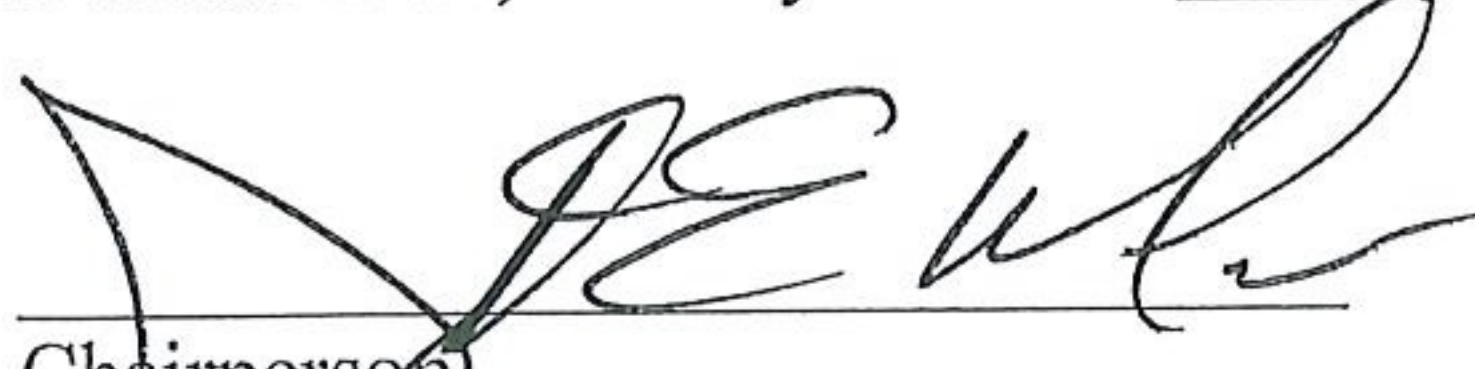
1. The Court shall have exclusive jurisdiction over any Indian Child who is domiciled or located in Indian Country within the territorial boundaries of the Chickasaw Nation.

2. The Court shall have concurrent jurisdiction over any Chickasaw Child who is domiciled outside the Chickasaw Nation Indian Country.

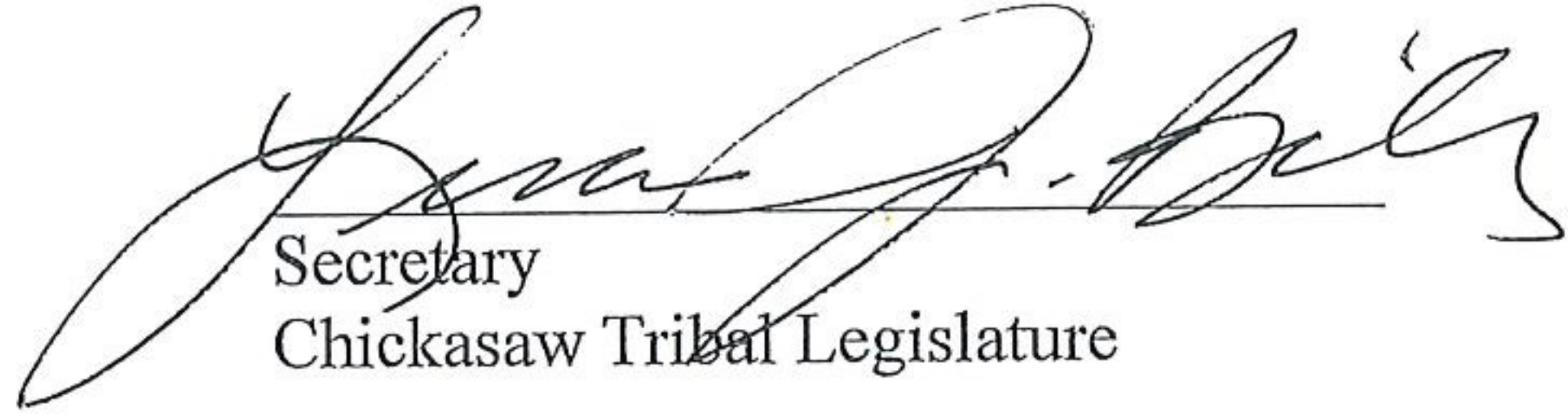
3. The Court shall have exclusive jurisdiction over any Indian Child who is currently in the custody of the Chickasaw Nation, regardless of the Indian Child's physical placement.

4. The Chickasaw Nation is duly authorized to enter into agreements with other tribal nations or states with respect to the care and custody of Indian children and jurisdiction over child custody proceedings, including, but not limited to, agreement which may provide for orderly transfer of jurisdiction on a case-by-case basis and agreement which provide for concurrent jurisdiction between the tribal nations and states.

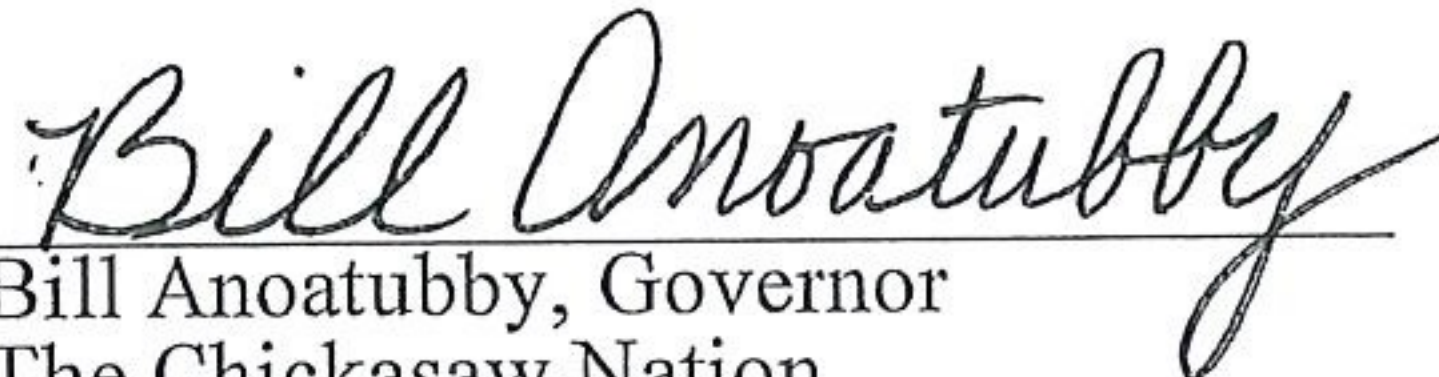
Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on December 18, 2020 by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 18 2020

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-007
Amendments to Title 6 of the Chickasaw Nation Code
(Domestic Relations and Families)

Explanation:

This resolution amends six sections in Title 6 that involve deprived child, adoption and guardianship proceedings. The amendments clarify the Chickasaw Nation District Court's jurisdiction over Chickasaw and other Indian children in child custody proceedings. The amendments also authorize the Chickasaw Nation to enter into agreements with other tribal and state governments for the custody and care of Chickasaw and other Indian children in deprived, adoptions and guardianship proceedings.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature